



CHAPTER xxiii.

An Act to enable the Seaforth and Sefton Junction Railway Company to create and issue a capital stock guaranteed by the Great Central and Great Northern Railway Companies to revive the powers and extend the time for the completion of the Seaforth and Sefton Junction Railways and for other purposes.

A.D. 1915.

[24th June 1915.]

WHEREAS by the Seaforth and Sefton Junction Railway Act 1903 (in this Act referred to as "the Act of 1903") the Seaforth and Sefton Junction Railway Company (in this Act referred to as "the Seaforth Company") were incorporated and were authorised to construct certain railways in the outskirts of the city of Liverpool connecting the Southport and Cheshire Lines Extension Railway with the Liverpool Overhead Railway:

And whereas by section 40 of the Great Central Railway Act 1904 (in this Act referred to as "the Act of 1904") the Seaforth Company were authorised to construct certain deviation railways in substitution for a portion of the railways authorised by the Act of 1903 and also certain branch railways which were intended to provide communication between the railways of the Seaforth Company and the lands of the Mersey Docks and Harbour Board and the Seaforth Company were by the same Act required to abandon the construction of portions of the railways authorised by the Act of 1903:

And whereas by the Great Central Railway (Various Powers) Act 1909 (hereinafter referred to as "the Act of 1909") the Seaforth Company were authorised to acquire further lands including lands for the construction of an electrical generating

A.D. 1915. station for working the traffic on their railways by electrical power :
—

And whereas by section 71 of the Act of 1904 it was provided that if the Seaforth Company should not by the first day of January one thousand nine hundred and six have issued and raised the capital required for the construction of their railways authorised by the Acts of 1903 and 1904 and should not have made substantial progress towards such construction the Great Central Railway Company (in this Act referred to as "the Great Central Company") might exercise in the name and on behalf of the Seaforth Company all the powers by the Acts of 1903 and 1904 conferred upon the Seaforth Company for and in relation to the construction of the said railways authorised by the Acts of 1903 and 1904 :

And whereas it was further provided by the said section 71 of the Act of 1904 that if the Great Central Company should exercise the said powers of the Seaforth Company for the construction of the said railways they might apply thereto any moneys from time to time raised by them and the Seaforth Company should pay to the Great Central Company by half-yearly payments interest at the rate of three pounds ten shillings per centum per annum upon the amount expended by the Great Central Company in or upon the construction of the said railways :

And whereas by the said section 71 the Seaforth Company were empowered to repay to the Great Central Company the money so expended by the Great Central Company upon the construction of the railways of the Seaforth Company :

And whereas by section 62 of the Act of 1909 it was provided that the Seaforth Company might grant to the Great Central Company and that company might take a lease of the undertaking of the Seaforth Company upon the terms and conditions stated in certain heads of agreement set forth in the Second Schedule to the Act of 1909 and the said heads of agreement provided that the said lease should be granted and that the term should be for nine hundred and ninety-nine years from the date of the completion of the railways of the Seaforth Company and that the rent should be (in addition to certain other sums therein specified) a sum equal to four per centum upon the capital expenditure approved by the Great Central Company on the railways of the Seaforth Company or if the

Seaforth Company should be able to raise any part of its capital at a lower rate of interest than four per centum per annum then that part of the rental which was to represent interest on the capital raised at such lower rate of interest or on expenditure out of such capital should be calculated at the actual rate or rates of interest at which such amounts had been raised instead of at the rate of four per centum per annum: A.D. 1915.

And whereas by section 6 of the Seaforth and Sefton Junction Railway Act 1911 (hereinafter referred to as "the Act of 1911") it was enacted that the provisions contained in the Act of 1909 with respect to the lease of the Seaforth Company's undertaking to the great Central Company should be read and have effect as if the names of the Great Central and Great Northern Railway Companies had been substituted therein for the name of the Great Central Company:

And whereas it has been agreed between the Great Central Company and the Great Northern Railway Company (in this Act referred to as "the Great Northern Company") and the Seaforth Company that the lease to be granted by the Seaforth Company pursuant to the Acts of 1909 and 1911 shall be so granted as soon as practicable after the passing of this Act:

And whereas no capital has been subscribed for shares in the Seaforth Company:

And whereas the Great Central Company in exercise of the powers in that behalf conferred upon them by the hereinbefore recited Acts have provided moneys which have been expended on the purchase of the lands required for the railways and works of the Seaforth Company:

And whereas it is expedient that provision should be made for the repayment by the great Northern Company to the Great Central Company of one half of the capital moneys already expended by the Great Central Company on the railways and works of the Seaforth Company and that the Great Central and Great Northern Companies should be required to provide in equal shares all further capital moneys required for the completion of the railways of the Seaforth Company until the issue of the guaranteed stock hereinafter referred to:

And whereas it is expedient that provision should be made for the creation and issue of guaranteed stock of the Seaforth

[Ch. xxiii.] *Seaforth and Sefton Junction* [5 & 6 GEO. 5.]
Railway Act, 1915.

A.D. 1915. Company the interest upon such stock being secured upon the rent payable under the said lease and also by the guarantees of the Great Central and Great Northern Companies:

And whereas the Great Central Company in pursuance of their powers in that behalf contained in the said section 71 of the Act of 1904 have purchased in the name and on behalf of the Seaforth Company the greater part of the lands required for the construction of the railways of the Seaforth Company authorised by the Acts of 1903 and 1904 and it is expedient that the compulsory powers for the purchase of certain lands in the townships of Litherland and Maghull required for the construction of the said railways but not yet purchased should be revived and extended as in this Act provided:

And whereas the time limited by the Act of 1909 for the completion of the railways of the Seaforth Company has expired and it is expedient that the powers for the construction of the said railways should be revived and the time limited for their completion should be further extended as in this Act provided:

And whereas the titles of the several Acts of Parliament relating to the undertaking of the Seaforth Company are set forth in the schedule to this Act:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title. 1. This Act may be cited as the Seaforth and Sefton Junction Railway Act 1915.

Incorporation of Acts. 2. Sections 7 to 13 inclusive of the Companies Clauses Consolidation Act 1845 and also the clauses and provisions of that Act with respect to the following matters (that is to say):—

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The giving of notices ; and

A.D. 1915.

The provision to be made for affording access to the special Act by all parties interested ;

and Part I. (relating to the cancellation and surrender of shares) of the Companies Clauses Act 1863 and Part II. (relating to extension of time) of the Railways Clauses Act 1863 as amended by subsequent Acts are (subject to the provisions of and so far as applicable to this Act) incorporated with and form part of this Act.

3. In this Act the following words and expressions have the meanings in this section respectively attached thereto unless there be something in the subject or context repugnant to such construction (that is to say):— Interpretation.

“The Seaforth Company” means the Seaforth and Sefton Junction Railway Company ;

“The Seaforth Acts” means so much of the Acts mentioned in the schedule to this Act as relates to the undertaking of the Seaforth Company and this Act ;

“The Seaforth Railways” means the railways and works of the Seaforth Company authorised by the Seaforth Acts ;

“The Seaforth Undertaking” means the undertaking of the Seaforth Company authorised by the Seaforth Acts ;

“The guaranteed stock” means Seaforth and Sefton Railway guaranteed stock authorised by this Act ;

“The Great Central Company” means the Great Central Railway Company ;

“The Great Northern Company” means the Great Northern Railway Company ;

“The two companies” means the Great Northern Company and the Great Central Company ;

“The Act of 1903” means the Seaforth and Sefton Junction Railway Act 1903 ;

“The Act of 1904” means the Great Central Railway Act 1904 ;

“The Act of 1909” means the Great Central Railway (Various Powers) Act 1909 ;

A.D. 1915.

“The Act of 1911” means the Seaforth and Sefton Junction Railway Act 1911;

“The Joint Committee” means the Joint Committee by this Act constituted representing the Great Central Company and the Great Northern Company;

“The standing arbitrator” means the standing arbitrator to be appointed from time to time by the Joint Committee under the provisions of this Act.

Rent for
Seaforth
Railways
payable by
two com-
panies.

4.—(1) The lease of the Seaforth Undertaking to be granted by the Seaforth Company to the two companies pursuant to the Seaforth Acts shall be so granted at the expense of the Seaforth Company as soon as practicable after the passing of this Act.

(2) The rent payable by the two companies to the Seaforth Company for the said lease shall form and be a first charge upon the net revenues from time to time accruing to the two companies in respect of the Seaforth Undertaking and the two companies shall jointly and severally and as between themselves in equal moieties be bound to pay and bear as part of the working expenses of their respective undertakings any deficiency which may arise in any half year in the said revenues available for the payment of the said rent and the cost of the performance and observance of the covenants on the part of the lessees contained in the said lease.

(3) The two companies shall within three months after the commencement of the said lease or after the grant of the said lease whichever is later produce the said lease to the Commissioners of Inland Revenue duly stamped with the ad valorem duty chargeable thereon calculated on the rent payable by the two companies as the consideration for the said lease and in default of such production the duty with interest thereon at the rate of five per centum per annum from the commencement of the lease or the grant of the lease as the case may be shall be a debt due to His Majesty from the two companies.

(4) The rent to be paid in respect of each half year by the two companies to the Seaforth Company for the lease of the Seaforth Undertaking shall be the amount certified by the board of directors of the Seaforth Company to have accrued due at the end of that half year in accordance with the provisions of the heads for the proposed lease from the Seaforth

Company set forth in the Second Schedule to the Act of 1909 A.D. 1915.
as amended by the Act of 1911.

(5) The balance of any rent and revenue from all sources remaining in any half year in the hands of the Seaforth Company after payment of the interest accrued due on the guaranteed stock and of the office and administration expenses of the Seaforth Company shall be paid by the Seaforth Company to the two companies in equal moieties.

(6) After the said lease shall have been granted the same shall not be surrendered or determined nor shall the rent payable thereunder be decreased without the previous sanction of a resolution passed at a meeting specially convened for the purpose of the holders of the guaranteed stock by a majority consisting of the holders of not less than three fourths in value of the guaranteed stock represented at such meeting.

5.—(1) The Seaforth Company may create and issue a stock to be called "Seaforth and Sefton Railway guaranteed stock" to an amount not exceeding one million pounds.

Power to
Seaforth
Company
to create
guaranteed
stock.

(2) The guaranteed stock shall be a first charge on the revenue of the Seaforth Company and shall be entitled to a perpetual fixed dividend not exceeding four pounds per centum per annum which shall be paid half yearly by the Seaforth Company in the months of February and August in every year. The two companies shall jointly and severally and as between themselves in equal proportions from time to time guarantee and secure in perpetuity the payment of the said fixed dividend on the guaranteed stock and shall and are hereby required from time to time to discharge as part of the working expenses of their respective undertakings any moneys they may be called on by the Seaforth Company to pay in respect of such guarantee. Provided that in the event of the Seaforth Company issuing all or any part of the guaranteed stock before the completion of the Seaforth Railways and determining to pay interest to the holders of such stock under the powers of the section of this Act the marginal note whereof is "Power to pay interest out of capital during construction" the payment to be made by the two companies under this provision shall be limited to such sums as shall be necessary to make up the difference between the amount which the Seaforth Company shall expend out of capital in payment of interest during construction on

A.D. 1915. the amount from time to time paid up on the guaranteed stock and the actual amount which the holders of the guaranteed stock may by the terms of issue be entitled to claim such terms of issue having been previously submitted to and approved in writing by the respective boards of directors of the two companies.

(3) After the granting of the said lease the dividend on the guaranteed stock shall without prejudice to the rights of the holders of the guaranteed stock under the guarantee of the two companies referred to in the last preceding subsection be primarily payable out of and as a first charge upon the rent payable to the Seaforth Company by the two companies as the consideration for the said lease and such rent shall be applied by the Seaforth Company accordingly.

(4) The guaranteed stock may be issued as a whole or in instalments but the holders of such stock shall not as between themselves be entitled to any preference or priority.

(5) If and whenever the dividend on the guaranteed stock shall be more than one month in arrear any one or more of the holders of such stock holding individually or collectively not less than ten thousand pounds of such stock may (without prejudice to the right to sue in any court of competent jurisdiction for the dividend in arrear) require and obtain the appointment of a receiver of the rent payable under the said lease and of any other revenues of the Seaforth Company and such receiver shall have power to recover and receive the said rent and any other revenues of the Seaforth Company and to enforce the covenants and provisions of the said lease and fulfilment of the guarantee of the two companies And the provisions of sections 26 and 27 of the Companies Clauses Act 1863 (as modified or amended by subsequent Acts) are incorporated herewith and for the purposes of this Act shall be read as if the guaranteed stock and the dividend thereon were referred to therein in place of debenture stock and the interest thereon and as if the said rent and other revenues were the tolls or sums liable to the payment of such dividend.

(6) The powers of the Seaforth Company granted by the Seaforth Acts of raising capital by the issue of shares and of borrowing on mortgage and of creating or issuing debenture stock are hereby cancelled and shall cease as from the date of the passing of this Act.

6. Subject to the provisions of this Act the Seaforth Com-
 pany may dispose of any portion of the guaranteed stock at
 such time to such persons at such price (whether at a discount
 or price below the nominal amount thereof or at par or at a
 premium) and on such terms and conditions and in such a
 manner as they think advisable.

A.D. 1915.

As to dis-
 posal of
 guaranteed
 stock.

7. Notwithstanding anything in this Act or in any Act or
 Acts incorporated herewith the Seaforth Company may out of
 any money by this Act authorised to be raised pay interest at
 such a rate not exceeding four pounds per centum per annum
 as the Seaforth Company may determine to any stockholder on
 the amount from time to time paid on the guaranteed stock
 held by him from the respective times of such payments until
 the expiration of the time limited by this Act for the comple-
 tion of the Seaforth Railways or such less period as the
 Seaforth Company may determine but subject always to the
 conditions hereinafter stated (that is to say):—

Power to
 pay interest
 out of capital
 during con-
 struction.

- (1) No such interest shall begin to accrue until the Seaforth
 Company shall have deposited with the Board of
 Trade a statutory declaration by two of the directors
 and the secretary of the Seaforth Company that
 two thirds at least of the guaranteed stock has been
 actually issued and accepted and is held by stock-
 holders who or whose executors administrators or
 assigns are legally liable for the same:
- (2) No such interest shall accrue in favour of any stock-
 holder for any time during which any call or
 instalment on any guaranteed stock held by him is
 in arrear:
- (3) The aggregate amount to be so paid for interest shall
 not exceed one hundred and twenty thousand pounds:
- (4) Notice that the Seaforth Company has power so to pay
 interest out of capital shall be given in every
 prospectus advertisement or other document inviting
 applications for the guaranteed stock:
- (5) The yearly accounts of the Seaforth Company shall
 show the amount of the guaranteed stock on which
 and the rate at which interest has been paid in
 pursuance of this section:

A.D. 1915.

(6) Section 67 (Power to pay interest out of capital during construction) of the Act of 1903 is hereby repealed.

Save as hereinbefore set forth no interest shall be paid to any stockholder out of any capital which the Seaforth Company are authorised to raise but nothing in this Act shall prevent the Seaforth Company from paying to any stockholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Great North-
 ern Company
 to repay
 Great Cen-
 tral Com-
 pany one
 half of past
 expenditure
 on Seaforth
 Railways.

8.—(1) The Great Northern Company shall within one month from the passing of this Act repay to the Great Central Company one half of the moneys expended by the Great Central Company (and not repaid to them by the Seaforth Company) in exercising the powers conferred on the Great Central Company by section 71 (Powers for construction of Seaforth main line may be exercised by Great Central Company in certain events) of the Act of 1904 or otherwise paid by them for or on account of the Seaforth Company together with compound interest on such one half with half-yearly rests at the rate of three and a half per centum per annum from the respective dates of expenditure or payment of such moneys by the Great Central Company until the date upon which repayment is made by the Great Northern Company.

(2) Upon such repayment by the Great Northern Company to the Great Central Company the moneys expended or paid as aforesaid shall be deemed to have been advanced to the Seaforth Company by the two companies in equal shares upon the respective dates on which such moneys were expended or paid by the Great Central Company.

(3) The Great Central Company shall produce to the Commissioners of Inland Revenue a King's Printer's copy of this Act stamped with duty at the rate of two shillings and sixpence for every hundred pounds and any fraction of a hundred pounds over any multiple of a hundred pounds of the amount payable by the Great Northern Company under this section and in default of such production within six months after the passing of this Act the duty with interest thereon at the rate of five per centum per annum shall become a debt due from the Great Central Company to His Majesty Any money in

respect of stamp duty which may be payable under or by virtue of this section shall be paid by the Seaforth Company or advanced by the two companies on account of the Seaforth Company. A.D. 1915.

9.—(1) All capital moneys required after the passing of this Act for or in relation to the completion of the construction of the Seaforth Railways and not produced by the issue of the guaranteed stock may from time to time be provided by the two companies in equal proportions. Capital for Seaforth Railways to be provided in first instance by two companies.

(2) The Seaforth Company shall from time to time determine the amount of capital moneys required to be provided by the two companies and may by notice in writing to each of the two companies make such calls as they think fit for the amounts to be provided by the two companies under this section. Provided that the aggregate amount of the capital moneys advanced and provided by the two companies whether before the passing of this Act or under this section shall not exceed one million pounds.

(3) If either of the two companies fail to pay any call under this section at the time appointed by the Seaforth Company for the payment thereof the company in default shall (without prejudice to any other rights of the Seaforth Company against such company) pay to the Seaforth Company interest at the rate of five pounds per centum per annum upon the amount of the call from the time so appointed until payment thereof. Such call and any interest thereon shall be deemed to be a debt due from the defaulting company to the Seaforth Company.

10. The two companies may respectively apply to the purposes of this Act to which capital is properly applicable any capital moneys from time to time raised or to be raised by them and which are not by any Act made applicable to any special purpose or which being so made applicable are not required for that purpose. Application of capital by two companies.

11.—(1) The sums of money from time to time coming into the hands of the Seaforth Company by virtue of the creation and issue of the guaranteed stock shall so far as shall be required for such purposes be applied (a) in paying the stamp duties mentioned in the sections of this Act the marginal notes whereof are respectively "Rent for Seaforth Railways payable Application of proceeds of stock.

A.D. 1915. — by two companies” and “Great Northern Company to repay Great Central Company one half of past expenditure on Seaforth Railways” and (b) in paying to the two companies respectively *pari passu* and in equal shares the amounts which shall have been expended paid advanced or provided by them as aforesaid for or on account of the Seaforth Company together with compound interest thereon with half-yearly rests at the rate of three and a half per centum per annum from the respective dates on which such amounts shall have been paid provided or expended and subject to such payments shall be applied towards the completion of the Seaforth Railways.

(2) The balance if any of the said sums so coming into the hands of the Seaforth Company shall unless the Great Northern Company and the Great Central Company otherwise agree be paid by the Seaforth Company to those companies in equal moieties and shall be applied by those companies to the general purposes of their respective undertakings to which capital is applicable.

Use of Seaforth Railways by two companies division of receipts and fixing of through rates.

12.—(1) The two companies shall have equal rights each with the other in all respects in the Seaforth Undertaking and subject thereto each of the two companies may run over and use the Seaforth Railways as fully and freely as if they formed part of the respective undertakings of those companies and no advantage shall be given to either company to the prejudice of the other.

(2) The two companies may enter into agreements with reference to the division between them of the receipts and expenses of the Seaforth Undertaking and the allowances to be made to either company in respect of its traffic on the Seaforth Railways and in default of such agreement and so far as the same shall not extend such division and allowances shall be settled between the two companies by the Joint Committee.

(3) Each of the two companies may fix and quote through rates and fares in respect of through traffic carried by them over the Seaforth Railways or any part thereof Provided that if either of the two companies object to any through rate or fare so fixed or to any division or proposed division of any such through rate or fare or the amount to be credited to the two companies out of such through rate or fare the same shall be fixed by the Joint Committee.

A.D. 1915.

Joint Com-
mittee and
standing
arbitrator.

13.—(1) For the purposes of the Seaforth Acts and this Act there shall be a joint committee to be named the Seaforth Railways Joint Committee representing the Great Central Company and the Great Northern Company respectively and a standing arbitrator to be appointed as hereinafter provided. The Joint Committee shall consist of three of the directors of the Great Central Company and three of the directors of the Great Northern Company to be nominated in writing under the seal of the respective companies the first nomination to be made within four months after the passing of this Act but the boards of the two companies may by mutual agreement increase the number of the Joint Committee to not more than five directors of each company and a chairman of the Joint Committee shall be elected for each meeting and shall be a director of one of the two companies alternately and the representatives of each of the two companies shall have only one vote amongst them and the chairman shall not have a casting vote and in case of difference arising between the directors representing the Great Central Company on the one hand and the directors representing the Great Northern Company on the other hand the same shall be settled from time to time by the standing arbitrator as hereinafter provided whose decision shall be final and binding on and be deemed to be the decision of the Joint Committee.

(2) Each of the two companies may from time to time at their pleasure by writing under their respective seals remove all or any of the members of the Joint Committee nominated by them respectively as aforesaid and may in like manner fill up any vacancies occurring in the Joint Committee by removal death disqualification or resignation. Any informality in the nomination of a member of the Joint Committee shall not invalidate any acts done by the Joint Committee previously to the discovery of such informality and the omission of either company to nominate original members of or to fill up vacancies in the Joint Committee shall not invalidate the acts of the Joint Committee.

(3) The Joint Committee shall hold its meetings at such place as it may from time to time determine and four shall be a quorum thereof.

(4) The Joint Committee may from time to time appoint and at their pleasure remove a secretary and such officers

A.D. 1915. — clerks and servants as may be necessary for the conduct of the business of the Joint Committee and shall keep or cause to be kept books in which shall be entered the minutes of all proceedings of every meeting of the Joint Committee and the decisions of the standing arbitrator.

(5) Each of the two companies may at any station on the Seaforth Railways appoint its own booking and invoicing clerks and parcels carting and canvassing staff and accommodation for such clerks and staff shall be provided by the Joint Committee or by each company as in case of difference between them shall be determined by the Joint Committee.

(6) The Joint Committee shall (subject to the express provisions of this Act as to the rights of the two companies) in case of difference between the two companies regulate the trains which the two companies and each of them may from time to time run and the traffic generally on the Seaforth Railways.

(7) The two companies when required in writing by the Joint Committee under the hand of their secretary shall from time to time make payments or advances for current revenue purposes to the Joint Committee in proportions to be fixed by the Joint Committee.

(8) The working accounts of the Seaforth Railways shall be kept and the collection of the receipts for local and through traffic and from all other sources and the payment of salaries and wages rates and taxes maintenance stores and other expenses in connection with the Seaforth Undertaking shall be undertaken by one or other of the two companies as may be from time to time agreed and in the absence of any such agreement then by the Joint Committee. The accounts so kept shall be open to the inspection of the respective accountants of the two companies and their agents at all reasonable times and if the payment of such expenses as aforesaid shall be undertaken by one of the two companies payments on account shall be made from time to time to that company by the other of them as may be mutually arranged or settled by the standing arbitrator.

(9) As early as may be practicable in each half year complete statements of accounts made up to the previous thirtieth June and thirty-first December respectively verified and signed by the accountants of the two companies shall be submitted to the

Joint Committee and any balances shown thereon shall be paid by one company to the other or to or by the Joint Committee as the case may be within twenty-eight days thereafter. A.D. 1915.

(10) Any difference arising between the two companies under this Act shall be settled by the arbitration of a standing arbitrator to be appointed by the two companies within one month after the appointment of the Joint Committee and thereafter annually in the month of October in each year or from time to time as a vacancy may occur by death or resignation or incapacity or otherwise and if at any time the two companies shall fail to agree in appointing a standing arbitrator within any month by this Act prescribed for such appointment or in case of a casual vacancy within one month after such vacancy shall have occurred the standing arbitrator shall be a person appointed in that behalf for the remainder of the then current year by the Board of Trade on the application of either of the two companies after notice to the other.

14. During the continuance of the lease authorised by the Seaforth Acts all the powers and privileges granted to and which might otherwise be exercised by and enjoyed by the Seaforth Company by virtue of the Seaforth Acts with regard to the possession enjoyment and management of the Seaforth Undertaking and the tolls fares rates and charges to be taken on the Seaforth Railways shall subject to the provisions of this Act be exercised and enjoyed by the two companies and their officers and servants under the same regulations and restrictions as are by the Seaforth Acts imposed on the Seaforth Company and their officers and servants and the two companies shall with respect to the Seaforth Undertaking be subject to all the obligations by the Seaforth Acts imposed on the Seaforth Company. Powers and obligations of Seaforth Company vested in two companies.

15.—(1) From and after the passing of this Act the board of directors of the Seaforth Company shall consist of six directors only The directors of the Seaforth Company in office immediately before the passing of this Act shall upon such passing cease to hold office as such and the directors of the Great Central Company shall by writing appoint three directors of the Seaforth Company and the directors of the Great Northern Company shall by writing appoint the remaining three directors of the Seaforth Company Each of the six directors so appointed shall remain in office until he shall die or resign or until his Appointment election and meetings of directors.

A.D. 1915. — appointment be revoked as hereinafter mentioned and the directors of the two companies respectively shall have power by writing to revoke any such appointment made by them respectively and to appoint new directors or a new director of the Seaforth Company in the place of any directors or director appointed by them respectively whose appointment shall be so revoked or who shall have died or resigned.

(2) The quorum of a meeting of directors shall be two provided that at least one director nominated by each of the two companies shall be present. The chairman of the Board of the Seaforth Company shall be alternately a director appointed by each of the two companies. The representatives of each of the two companies shall have only one vote and the chairman shall not have a casting vote. In case of difference between the directors appointed by the Great Central Company on the one hand and the directors appointed by the Great Northern Company on the other hand the same shall be settled by the standing arbitrator whose decision shall be final and binding and be deemed to be the decision of the board of directors of the Seaforth Company.

(3) The following sections of the Act of 1903 are hereby repealed (that is to say) :—

Section 38 (Number of directors);

Section 39 (Qualification of directors);

Section 40 (Quorum of meeting of directors);

Section 41 (First directors).

(4) The powers of the Seaforth Company under the Seaforth Acts shall be exercised by the directors of the Seaforth Company.

Meetings of
guaranteed
stockholders.

16.—(1) Notwithstanding anything contained in the Seaforth Acts or the Acts incorporated therewith the provisions of the Companies Clauses Consolidation Act 1845 with respect to the general meetings of the Company and the exercise of the right of voting by the shareholders and the appointment and rotation of directors and with respect to the making of dividends shall not after the passing of this Act apply to the Seaforth Company or to the holders of the guaranteed stock or to the directors of the Seaforth Company and the said stock shall not constitute the holders thereof members or proprietors of the Seaforth Company or except as in this Act provided confer upon the said holders any rights of being present or voting at meetings of the Seaforth Company.

A.D. 1915.

Repeal of
sections of
Act of 1904.

B

A.D. 1915.

Section 71 Powers for construction of Seaforth main line may be exercised by Great Central Company in certain events ;

Section 129 Power to Great Central Company to subscribe to undertaking of Seaforth Company ;

Section 130 Votes of Great Central Company at general meetings of Seaforth Company ;

Section 131 Appointment of directors of Seaforth Company by Great Central Company.

Revival of powers and extension of time for compulsory purchase of certain lands in Litherland and Maghull.

18. The powers of the Seaforth Company for the compulsory purchase of the lands numbered 15 in the township of Litherland in the urban district of Litherland and the lands numbered 6 7 and 8 in the township of Maghull in the rural district of West Lancashire on the deposited plans of the railways authorised by the Act of 1903 are hereby revived and may be exercised by the Seaforth Company for a period of three years from the passing of this Act.

Revival of powers and extension of time for construction of Seaforth Railways.

19. The powers granted to the Seaforth Company by the Act of 1903 for the construction of the railways authorised by that Act (except in so far as the said railways were authorised to be abandoned by the Act of 1904) and the powers granted to that Company by the Act of 1904 for the construction of the railways authorised by that Act and for making and completing the said railways or otherwise in relation thereto are hereby revived and those powers as so revived may be exercised for a period of three years from the passing of this Act and at the expiration of that period the said powers shall cease except as to so much of the said railways as is then completed.

Saving of rights in respect of construction of Seaforth Railways.

20. The powers granted to the Seaforth Company which are revived by the section of this Act the marginal note whereof is "Revival of powers and extension of time for construction of Seaforth Railways" shall be subject to the provisions contained in the Act by which the said powers were originally granted and in any subsequent Act for the protection and benefit of the Crown or of any local authority company or person as if the period for the exercise of the said powers granted to the Seaforth Company had not expired.

Deposits for future Bills not to be paid out of capital.

21. The Seaforth Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or

hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Seaforth Company to construct any other railway or to execute any other work or undertaking. A.D. 1915.

22. Notwithstanding anything in this Act the Seaforth Company shall not under the powers of this Act raise any money during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained. Restriction
on raising
money
during war.

23. Nothing in this Act contained shall exempt the Seaforth Company or the two companies or the Seaforth Railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the passing of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised by the Seaforth Acts. Provision as
to general
Railway
Acts.

24. All costs charges and expenses of and incident to the preparing for obtaining and passing this Act or otherwise in relation thereto shall be paid by the Seaforth Company. Costs of Act.

[Ch. xxiii.]

*Seaforth and Sefton Junction
Railway Act, 1915.*

[5 & 6 GEO. 5.]

A.D. 1915.

The SCHEDULE referred to in the foregoing Act.

LOCAL ACTS OF PARLIAMENT RELATING TO THE UNDERTAKING
OF THE SEAFORTH COMPANY.

The Seaforth and Sefton Junction Railway Act 1903.

The Great Central Railway Act 1904.

The Great Central Railway Act 1907.

The Great Central Railway (Various Powers) Act 1909.

The Seaforth and Sefton Junction Railway Act 1911.

The Great Central Railway Act 1912.

Printed by EYRE and SPOTTISWOODE, LIMITED
FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament

To be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LIMITED, 29, BREAMS BUILDINGS, FETTER LANE, E.C., and
28, ABINGDON STREET, S.W., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LIMITED, 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America, and other Foreign Countries of
T. FISHER UNWIN, LIMITED, LONDON, W.O.